



DECISION

Complaint No. : POS/48/KE/2025

Name and Address of the Complainant : Syed Haider Raza s/o Syed Muhammad Raza, 282, Survey No. 627, Aon-o-Mohammad, Street No. 06, Jaffar Tayyar Society, Malir Karachi.

Name of the Agency Complained against : Karachi Metropolitan Corporation (KMC)

Name & Designation of Investigation Officer : Syed Farrukh Habib
Director, Regional Office, Karachi (East)

Subject :-

ALLEGED IN ACTION ON APPLICATION MADE TO DIRECTOR LAND, KMC TO PUT RECORD FILE IN SAFE CUSTODY AND STOPPAGE OF ILLEGAL TRANSFER OF PLOT NO. 50, GULSHAN-E-MAZDOOR, BALDIA TOWN, SECTOR 14-15, KARACHI.

THE COMPLAINT

Syed Haider Raza, in his complaint dated 03.02.2025, stated that his deceased father, was the lawful allottee of Plot No. 50, Gulistan-e-Mazdoor, Sector 14/15, Baldia Town, Karachi. After his father's demise, complainant, considering himself as true legal heir, wanted to get the said plot transferred in his name on the basis of inheritance. He stated that he visited the office of Deputy Director, KMC, situated at Super Market Liaquatabad Karachi, along with original file for verification. During this visit, while his original file was being checked by the Deputy Director Mr. Mashkoor, an individual present in the KMC office forcefully snatched the file and the original allotment order. The KMC officials, including Deputy Director, informed the Complainant about the said individual known as Farooq Shah. On their advice, he immediately submitted an application for registration of FIR at Super Market Police Station on 31.10.2024, and also filed a written request to the Director Land, KMC, for sealing of the concerned record to prevent any misuse.

2. The complainant expressed apprehension that unauthorized individuals are attempting to get the said plot fraudulently transferred using complainant's fathers' forged signatures and fake stamp papers, despite the fact that the plot is jointly owned by all legal heirs. He stated that, no action has been taken by the KMC, despite his multiple visits, and such inaction by KMC has caused him distress and concern over the potential illegal transfer of his rightful property. He, therefore, solicited intervention of this office in the matter.

PROCEEDINGS

3. After admission of complaint by condoning delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991, (amended up to date), as well as after receiving mandatory Affidavit on Form "A" and other relevant documents, report was called from the Agency. In response the Deputy Director, Land Lease,

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Baldia Town, Divison, KMC, vide letter dated 24.02.2025, intimated that plot no. 50 Gulshan-e-Mazdoor Baldia Town, Sector 14-15 Karachi, is currently in the name of Mr. Muhammad Raza (Father of Complainant).

4. The Investigating Officer fixed the case of hearing on 14.07.2025, when Mr. Wasi Usmani Director Land KMC appeared. During the course of hearing the agency's representative resubmitted his report (already furnished earlier) that action in the matter regarding stopping transfer of property has been taken. He stated that an FIR of the said incident was also registered which is under investigation.

FINDING

5. I have examined the case file, perused correspondence, reports, rejoinders etc, and observed that:

- i. Agency's report confirmed that ownership of Plot No. 50, Gulistan-e-Mazdoor, Sector 14/15, Baldia Town, Karachi was still in the name of late Mr. Muhammad Raza, father of the complainant.
- ii. The incident of snatching of the original file and allotment order from the KMC office was verified, and an FIR of the incident stands registered in the matter, which is presently under investigation.
- iii. The Director Land, KMC has taken preventive measures by sealing the relevant record to avert any fraudulent transfer until final verification of legal heirs.
- iv. It is observed that the complainant's main grievance regarding possible illegal transfer has been addressed through timely intervention, though continued vigilance by KMC and police authorities is required to ensure protection of legal ownership rights.

DECISION

6. In view of above, the complaint stands disposed of as redressed.

Given under my hand and seal of the office



Sd /-
(Muhammad Sohail Rajput)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 21.11.2025